

HOUSE BILL 1741

By Davis

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 41; Title 53; Title 56; Title 63; Title 68 and
Title 71, relative to the use of drugs for the
treatment of pain.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 41, Chapter 21, Part 2, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Healthcare prescriber" means a prescriber as defined in § 53-10-203;

(2) "Insurance policy" means a group or individual insurance plan or policy offered through this state or a local government, a private insurance company, a healthcare corporation, a health management organization, TennCare, or other plan or policy that provides medical or pharmaceutical coverage to inmates incarcerated in this state;

(3) "Insurer" means an entity that offers an insurance policy; and

(4) "Non-opioid medication" means a drug or biological product that is indicated to produce analgesia without acting on the body's opioid receptors.

(b) Except as otherwise provided in this section, an insurer, for purposes of offering an insurance policy, may adopt or amend a preferred drug list (PDL).

(c)

(1) In establishing and maintaining the PDL, the insurer shall ensure that a non-opioid medication approved by the United States food and drug administration for the treatment or management of pain is not disadvantaged or

discouraged with respect to coverage relative to an opioid or narcotic drug for the treatment or management of pain on the PDL.

(2) Subdivision (c)(1) does not prohibit an opioid medication from being preferred over other opioid medications, or a non-opioid medication from being preferred over other non-opioid medications.

(d) This section applies to a non-opioid medication after it has been approved by the United States food and drug administration for a period of nine (9) months or longer for the treatment or management of pain, regardless of whether the drug has been reviewed by the insurer for inclusion on the PDL. This section also applies to drugs being provided under a contract between the insurer and a pharmacy benefits manager for purposes of an insurance policy.

SECTION 2. This act takes effect January 1, 2027, the public welfare requiring it.